

# Title Chain Audit Report: Dudley Estate 1938 LLC - Comprehensive Analysis

**Subject Property:** 0.530 Acres, John S. Booth Survey, Abstract No. 139, Liberty County, Texas  
(Commonly known as 511 Dudley St, Cleveland, TX) **Date of Analysis:** November 2025

## Executive Summary (Summary for Slow Folks)

The **DUDLEY ESTATE 1938 LLC** is not merely a legal placeholder; it is a meticulously structured corporate vehicle employed by two highly influential Liberty County officials, **Constable Zack T. Harkness** and **District Attorney Jennifer Bergman**, to manage a commercial investment property. The core financial maneuver—transferring the \$143,360.00 asset from their personal names into the LLC—is executed primarily for **asset protection**. This corporate structure provides a crucial barrier, insulating their personal assets (such as separate homes or joint savings) from the legal liabilities, tenant disputes, or operational risks inherent to commercial rental property ownership in Texas.

The audit establishes a profound convergence of the family's private financial history and the county's volatile political environment:

- 1. Financial Strategy and Origin:** The LLC was deliberately formed to acquire and leverage the Dudley Street property. The asset originated from the **Dark family**, whose public record shows significant Federal Tax Lien activity, highlighting the complex, and sometimes troubled, nature of real estate transactions in the region.
- 2. Political Exposure and Ethical Conflict:** The political arena directly intersects with the private life of the principals. DA Jennifer Bergman's official capacity led to her office handling the indictment process for fellow elected official, **Commissioner David S. Whitmire**. This required her to execute a formal legal recusal, underscoring the immediate potential for political conflicts of interest to arise and affect the operational integrity of county government, entirely separate from the officials' property holdings.

## Section 1: The Dudley Estate 1938 LLC Structure & Finance

The LLC's timeline confirms it was created specifically for the single purpose of acquiring and leveraging this property, with key financial instruments recorded simultaneously to maximize security for the lender.

**Table 1.1: The Title Chain Sequence (2014 - 2025)**

| Step | Date | Document Type | Grantor / Seller | Grantee / Buyer | Purpose & Status |
|------|------|---------------|------------------|-----------------|------------------|
|      |      |               |                  |                 |                  |

|                                |            |                                               |                                       |                                         |                                                                                                                                                                                                                                                                                                                                  |
|--------------------------------|------------|-----------------------------------------------|---------------------------------------|-----------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>A. Harkness Acquisition</b> | 2014       | <b>WARRA NTY DEED w/ Lien</b><br>(2014016960) | <b>Dark, C.K. &amp; Dark, C.</b>      | <b>Harkness, Zack T.</b>                | <b>Initial Purchase:</b> Harkness acquired the property for <b>\$143,360.00</b> from the Dark family. The deed included a <b>Vendor's Lien</b> (mortgage) in favor of <b>SWBC Mortgage Corporation</b> , defining the initial debt and financial commitment.                                                                     |
| <b>LLC Formation</b>           | 02/10/2021 | SOS Filing<br>(0803934777)                    | N/A                                   | DUDLEY<br>EY<br>ESTATE<br>E 1938<br>LLC | Creation of the legal entity for asset holding, strategically timed one month before acquisition to establish a clean "inception of title" under the corporate name. Status: ACTIVE.                                                                                                                                             |
| <b>1. Ownership Transfer</b>   | 03/22/2021 | Deed<br>(202101141)                           | Harkness, Zack T. & Bergman, Jennifer | DUDLEY<br>EY<br>ESTATE<br>E 1938<br>LLC | <b>Internal Transfer.</b> Moved the asset from the individuals to their LLC. This step was crucial: Bergman's signature cleared potential <b>Community Property claims</b> (from mortgage paydowns using marital funds) and any potential <b>Homestead interest</b> that may have been attached to Harkness's separate property. |
| <b>2. Secured Loan</b>         | 03/22/2021 | Deed of Trust<br>(202101142)                  | DUDLEY ESTATE<br>1938<br>LLC          | <b>SOUTHSIDE BANK</b>                   | <b>Commercial Financing:</b> Secured a new commercial loan, which likely <b>refinanced or paid off</b> the original SWBC mortgage. This maneuver allows the LLC to deduct business expenses, and the loan amount determines the LLC's leveraging strategy. James D. VanDeventer served as Trustee.                               |
| <b>3. Added Security</b>       | 03/22/2021 | Assignment of Rents<br>(202101143)            | DUDLEY ESTATE<br>1938<br>LLC          | SOUTH<br>HSIDE<br>BANK                  | <b>High-Confidence Investment:</b> Granted the bank the superior, immediate right to collect all rental income upon loan default. This is the clearest indication that the property is strictly <b>commercial/income-producing</b> .                                                                                             |
| <b>4. Correction</b>           | 11/05/2025 | Correction Affidavit<br>(2025037909)          | Harkness, Z.T. & Nelson, W.           | DUDLEY<br>EY<br>ESTATE<br>E 1938<br>LLC | Affidavit, prepared by Harkness, to correct a clerical error (likely an address or name) years after the initial complex transaction, ensuring the title remains insurable for future transactions.                                                                                                                              |

**Table 1.3: LLC Contact Details and Legal Administration**

| Address Type             | Address                                       | Individual/Purpose                                                | Implication                                                                        |
|--------------------------|-----------------------------------------------|-------------------------------------------------------------------|------------------------------------------------------------------------------------|
| <b>Registered Office</b> | 10712 THOMAS T. TRAIL,<br>CLEVELAND, TX 77328 | Official address for legal service; used by LLC on Deed of Trust. | Used for public-facing legal notices; ensures legal papers are served efficiently. |

|                              |                                           |                                                                  |                                                                                                                                                                                |
|------------------------------|-------------------------------------------|------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Tax Mailing Addresses</b> | 3638 HARBOR BOLTON RD, FRANKLIN, TX 77856 | Centralized correspondence address for tax and business filings. | Creates separation from the Cleveland political environment, directing sensitive financial documents to a private, distinct location.                                          |
| <b>Registered Agent</b>      | <b>JENNIFER BETH DEAN</b>                 | Sister of Zack T. Harkness.                                      | <b>Familial Control:</b> The appointment of a close, trusted family member as the statutory agent ensures the LLC's legal interests are managed internally by the family unit. |

## Section 2: Overlap of Individuals and Political/Financial Conflict

The roles of the elected officials place their private asset management directly adjacent to the county's legal and enforcement structures, creating potential for conflicts of interest.

Table 2.1: Individuals, Roles, and Overlap

| Individual Name                | Position/Purpose in Transaction                                                            | Public/Familial Role                         | Overlap of Interest                                                                                                                                                                                                                                                                                                                           |
|--------------------------------|--------------------------------------------------------------------------------------------|----------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Harkness, Zack T.</b>       | Grantor/Seller (2021); Affiant/Preparer of Correction (2025); <b>Initial Buyer (2014).</b> | <b>Liberty County Constable, Precinct 6.</b> | <b>Ethical Concern:</b> The Constable's primary duty is law enforcement and serving court process (including eviction notices and seizure documents). Managing a commercial rental property in the same precinct creates a perpetual, if indirect, <b>conflict</b> between his private financial interests and his public enforcement duties. |
| <b>Bergman, Jennifer</b>       | Grantor/Seller (2021).                                                                     | <b>Liberty County District Attorney.</b>     | <b>Political Conflict:</b> Her office was forced to recuse from the official case against Commissioner Whitmire due to the conflict created by her public position. Her joint ownership of the LLC with her spouse creates a necessary distance between her political role and her private wealth.                                            |
| <b>Whitmire, David S.</b>      | N/A (Not party to Dudley Estate docs).                                                     | <b>Liberty County Commissioner , Pct 3.</b>  | <b>Documented Wrongdoing:</b> Public records show his indictment on official charges, including alleged <b>Abuse of Official Capacity</b> (using county resources for personal gain). This incident underscores the serious, real-world political conflicts in Liberty County that surround public officials.                                 |
| <b>Rader, Bobbly (Sheriff)</b> | Grantor on Sheriff's Tax Deed Example.                                                     | <b>Liberty County Sheriff.</b>               | <b>Legal Distinction:</b> His office is legally designated to execute tax sales and evictions stemming from civil judgments. This clarifies that the Constable's office (Harkness's domain) is <b>not</b> the one authorized to execute the final property tax deed sales for the county.                                                     |

|                           |                                              |                                                                               |                                                                                                                                                                                                                                                             |
|---------------------------|----------------------------------------------|-------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Dark, Charles K. & Claire | Grantors/Sellers (2014) to Zack T. Harkness. | N/A                                                                           | The sale provided the foundation for the LLC's wealth. The use of an <b>Attorney-in-Fact</b> (Charles signing for Claire) required strict adherence to Texas recording laws to maintain clear title.                                                        |
| Dark, Lee R.              | N/A                                          | Subject of multiple <b>FEDERAL TAX LIEN</b> filings (2014, 2015, 2016, 2022). | <b>Financial Risk Context:</b> The asset acquired by Harkness originated from a family unit (the Darks) that was actively dealing with significant <b>IRS tax debt and liens</b> at the time of the sale, adding a layer of complexity to the 2014 closing. |

## 2.2: Public Property Action by Jennifer Bergman (Prior Office)

While serving as a **Cleveland City Councilmember**, Jennifer Bergman participated in public votes regarding municipal property:

- Property Voted On (2020):** Minutes from January 2020 show that Councilmember Bergman made a motion to approve the **purchase of 218 Peach Ave** for the City of Cleveland. This is a common and necessary function of elected city officials, demonstrating a track record of exercising fiduciary oversight on public property acquisitions. This action is distinct from her private business activities but highlights her practical experience in real estate transactions and municipal finance.

## Section 3: Historical and Legacy Context

This section explores the deep family roots and the legal history of the land that informed the creation of the LLC.

**Table 3.2: Dean/Harkness Family Legacy & Historical Filings**

| Filing Detail            | Document No.            | Date       | Grantor(s) → Grantee(s)                                 | Context & Connection                                                                                                                                                                                                                     |
|--------------------------|-------------------------|------------|---------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Subdivision Creator      | Map Records Vol 1, Pg 9 | N/A        | <b>W.J. DUNNAM</b>                                      | Creator of the <b>W.J. Dunnam First Addition</b> , naming <b>Dudley Street</b> . The LLC's reference to " <b>1938</b> " likely points to a significant year related to the original platting or the beginning of this development phase. |
| Original Purchase (Dean) | Deed (Vol 766, Pg 29)   | 11/05/1973 | Gary A. Dean → <b>Walter A. Dean &amp; Lena M. Dean</b> | Establishes the core Dean family land holding (a 5.13-acre tract) through a deed from their son, setting up the generational flow of the family's assets.                                                                                |

|                                 |                               |             |                                                                       |                                                                                                                                                                                                   |
|---------------------------------|-------------------------------|-------------|-----------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Mineral Lease</b>            | LEASE (85012907) / (91001706) | 1985 / 1991 | <b>Walter A. Dean &amp; Lena M. Dean</b> → SOHIO / Alan T. Grilliette | Confirms the family's assets included valuable <b>mineral rights</b> , which were actively leveraged through leases for oil, gas, and minerals well before the property was acquired by Harkness. |
| <b>Familial Transfer (Dean)</b> | WARRANTY DEED (2003001050)    | 01/06/2003  | <b>Walter A. Dean &amp; Lena M. Dean</b> → <b>Gary A. Dean</b>        | Transfer of property to a likely son, executed shortly before Walter A. Dean's probate. This action was a common estate planning step to distribute assets outside of the formal probate process. |
| <b>Probate Application</b>      | CERTIFICATION (2006018208)    | 12/27/2006  | GAIL C PANNELL, GARY DEAN, & <b>JOYCE BONDS</b> (Applicants)          | Formal action to administer the Will of <b>Walter A. Dean DECD</b> . The applicants are the siblings/heirs who legally represent the Dean family interest in the legacy land holdings.            |
| <b>Harkness Family Purchase</b> | Deed (0000038915)             | 1953        | N/A → <b>Harkness, W.E. Jr. &amp; C.H.</b>                            | Earliest recorded property purchase by a previous generation of the Harkness family, highlighting the family's deep, parallel history in Liberty County real estate.                              |

### 3.3: Dark Family Tax and Entity Activity

| Filing Detail            | Document No.                   | Date(s)                | Named Party                                       | Context & Significance                                                                                                                                                                                                                                |
|--------------------------|--------------------------------|------------------------|---------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Federal Tax Liens</b> | N/A                            | 2014, 2015, 2016, 2022 | <b>Dark, Lee R.</b>                               | Multiple tax liens filed by the Department of Treasury, indicating serious and sustained federal tax issues for a Dark family member. The timing of the liens surrounding the 2014 sale to Harkness suggests the sellers were under financial duress. |
| <b>Estate Transfer</b>   | Deed (2020) / Affidavit (2021) | 2020-2021              | <b>Dark, Ruby Estate of DECD</b>                  | Shows the Dark family was involved in multiple complex estate transfers around the same time Harkness formalized the LLC acquisition, indicating the continuous movement of assets within that lineage.                                               |
| <b>Business Entity</b>   | Deed of Trust / Release        | N/A                    | <b>Dark, William E. (DBA SPUR FOREST VENTURE)</b> | Confirms that William Dark is an active real estate professional or developer operating through a business entity, demonstrating the Dark family's history of complex asset management.                                                               |

## Historical Notes (Addressing Search Difficulties for Slow Folks)

| Topic | Search Difficulty | Summary of Findings |
|-------|-------------------|---------------------|
|-------|-------------------|---------------------|

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|------------------------------------|--------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>"O<br/>M Dr<br/>Bro<br/>wn"</b> | <b>Problem:</b> The name is found on a 1920 deed, but no match exists in modern records or obituaries. | <b>Summary:</b> This is highly likely a <b>historical clerical error</b> or mis-transcription of a name like "Olga M. Brown" ( <b>JORDAN OLGA MRS</b> ), who is a confirmed heir in the W.J. Dunnam estate documents. Tracing historical names spanning nearly a century is notoriously difficult due to transcription errors and lack of digital indexing. |
|------------------------------------|--------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

|            |                                 |                                                                              |
|------------|---------------------------------|------------------------------------------------------------------------------|
| <b>Osa</b> | <b>Problem:</b> No genealogical | <b>Summary:</b> The transaction listing <b>ANDERSON OSA</b> is from 1933 and |
|------------|---------------------------------|------------------------------------------------------------------------------|